

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2023CUBC018145: THEODORE C BENTLEY vs SATICOY DEVELOPMENT

08/31/2026 in Department 21

**Motion for Protective Order by Non-Parties Real Estate Neighborhood Tenancy LLC and
Real Estate Neighborhood Tenancy II LLC RE Defendants' Deposition Subpoenas or in
the Alternative to Quash the Subpoenas**

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motions:

- (1) Motion for Protective Order RE Defendants’ Deposition Subpoenas, or in the Alternative, to Quash the Subpoenas, and Request for Sanctions by Non-Parties Real Estate Neighborhood Tenancy, LLC and Real Estate Neighborhood Tenancy II
- (2) Motion for Protective Order RE Defendants’ Deposition Subpoenas, or in the Alternative, to Quash the Subpoenas, and Request for Sanctions by Non-Parties Family Lodging Investment Properties, LLC

Tentative Ruling:

Both motions for a protective order based on relevance and duplication are DENIED. The Deposition, and demand for production of document, of the PMK for both entities is the same and will be allowed to proceed in one deposition setting. The moving parties have provided insufficient justifications for barring the taking of the PMK deposition *ab initio*. However, since these entities are non-parties, and the scope of inquiry is fairly limited, this Court sees no reason for the single deposition to exceed five hours. Moreover, since documents generally speak for themselves, the deponent is authorized to appear for the deposition via remote technology provided that she has responded to the request to produce documents at least 24 hours prior to the commencement of the deposition.

The requests for sanctions by both parties are DENIED.

Counsel for Defendants is to give notice within two (2) court days.

Discussion:

Discovery from a nonparty is by deposition subpoena. (CCP §2020.010; *Unzipped Apparel, LLC v. Bader* (2007) 156 Cal.App.4th 123, 130.) Here, non-parties RENT and FLIP seek an order barring, or limiting, the deposition of their mutual PMK Dana Bowen. When a non-party feels burdened by a deposition subpoena, relief may come in various forms. First, “the court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.” (CCP §2017.020(a).) Second, “the court shall restrict the frequency or extent of use of a discovery method if it determines that” the discovery sought is (1) unreasonably cumulative/duplicative; (2) obtainable from some other source that is more convenient, less burdensome, or less expensive; or (3) unduly burdensome or expensive, taking into account the needs of the case, the amount in controversy, and the importance of the issues at stake in the litigation. CCP §2019.030(a). Third, a trial court may issue an order protecting the deponent from “unwarranted annoyance, embarrassment, or oppression, or undue burden and expense” associated with a discovery tool. (CCP §2025.420(b).) This is not an exhaustive list, but just the most common ones. (See *Nativi v. Deutsche Bank Nat'l Trust Co.* (2014) 223 Cal.App.4th 261, 316; see also, *Emerson Electric Co. v. Superior Court* (1997) 16 Cal.4th 1101, 1110.)

The first concern raised by the non-parties is the fact that their PMK (Dana Bowen) has already been deposed in this case in individual witness capacity. The general rule is that natural persons may not be deposed more than once without a court order based on a showing of good cause. (CCP §2025.610; see *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 254.) However, that limitation against taking more than one deposition from a natural person does not apply where the person was deposed as an agent for a company. (See CCP §2025.610(c)(1).) Technically, the statute permits a subsequent deposition of a natural person who was *first* deposed as a PMK, then as an individual witness, but there is no reason to read the statute so narrowly since the second deposition is of an entity which happens to speak through a familiar natural person, not a deposition of a natural person. (See, e.g., *Carter v. Superior Court* (1990) 218 CA3d 994, 997 [request for documents from party directly is distinct from request for documents at deposition].) There is no violation of the one deposition rule here.

Next, pursuant to CCP §2025.010, the defendants herein are generally authorized to take “the oral deposition of any person, including any party to the action. The person deposed may be a natural person, an organization such as a public or private corporation, a partnership, an association, or a governmental agency.” A deposition notice or subpoena directed to an entity must “describe with reasonable particularity the matters on which examination is requested.” (CCP §2025.230.) From there, the entity is under a duty to designate and produce the officers, directors, managing agents or employees “most qualified” to testify on its behalf. (CCP §2025.230; see also *LAOSD Asbestos Cases* (2023) 87 Cal.App.5th 939, 948.) The fact that RENT and FLIP both identified Dana Bowen as the person most knowledgeable to discuss the various areas of inquiry is no bar to her sitting for said deposition – provided that she testify as the PMK for both entities in one single deposition. If defendants intention is to split the deposition into two distinct sessions, one for RENT and the other for FLIP, this becomes harassing.

The second concern raised in the motions for protection relate to the perceived lack of relevance to the areas of inquiry. Each party has a presumptive right to inquire about any matter which – based on reason, logic and common sense – might (1) be admissible, (2) lead to admissible evidence, or (3) reasonably assist that party in evaluating the case, preparing for trial and/or facilitating resolution. (See CCP §2017.010; *Williams v. Superior Court* (2017) 3 Cal.5th 531, 557.) In fact, to some degree fishing expeditions are permitted in discovery. (*Gonzales v. Superior Court* (1995) 33 Cal.App.4th 1539, 1546; in accord, *Dodge, Warren & Peters Ins. Services, Inc. v. Riley* (2003) 105 Cal.App.4th 1414, 1420.) The only real limit is that discovery devices “must be used as tools to facilitate litigation rather than as weapons to wage litigation.” (*Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 221.) Although it might seem like an excessive use of legal fees to depose Ms. Bowen again regarding the manner in which RENT and FLIP paid defendants, especially since defendants are presumably already in possession of how they were paid and how the ventures were structured, the request to depose her is not itself outside the bounds of permissible discovery, and if defendants wish to bear that expense, that is their choice to do so. Plaintiff has eluded to the “other” ventures he has with the defendants, but the curious difference here is that this was all oral, no writings, and seemingly at odds with their previous custom and practice with these real property deals. Exploring the other deals, at least on the surface, might lead to the discovery of admissible evidence regarding the unwritten terms and conditions of the venture at issue.

In summary, the deposition of the PMK is allowed to proceed as one depo for both entities, including the requests for production of documents. The fact that Defendants may have copies of the documents requested, or that they could have asked about the documents during the depositions of Ms. Bowen and Plaintiff individually does not preclude Defendants from the right to ask for these documents from the PMK at his/her deposition. The documents requested are sufficiently relevant to the issues presented in this litigation and are proper subjects of discovery. The moving parties have provided insufficient justifications for barring the taking of this particular deposition *ab initio*. Since these entities are non-parties, and the scope of inquiry is fairly limited, this Court sees no reason for the single deposition to exceed five hours in total. Moreover, since documents generally speak for themselves, the deponent is authorized to appear for the deposition via remote technology (as offered by defense counsel in his 7/14/26 meet and confer letter, Exh. I to the moving papers) provided that she has responded to the request to produce documents at least 24 hours prior to the commencement of the deposition.

The court “shall” impose a monetary sanction against whichever side loses on the motion for protective order unless it finds that losing party acted “with substantial justification” or other circumstances render the sanction “unjust.” (CCP §2025.420(h).) The fact that RENT and FLIP are non-parties is of no consequence. (See *Brun v. Bailey* (1994) 27 Cal.App.4th 641, 658-659.) Here, the Court finds the moving parties have, in this Court’s estimation, acted in good faith by challenging the subpoenas, especially since the meet and confer letter indicates Defendants are seeking to depose Ms. Bowen for up to one full day for each entity, which this Court finds excessive and harassing. Further, the Court finds there has been a lack of effective meet and confer by both parties. The solution proposed here should have been evident to the parties – rather than the “all of nothing” approach. The sanctions requested by both parties are DENIED.